IN THE HIGH COURT OF JUSTICE
BUSINESS AND PROPERTY COURTS OF ENGLAND AND WALES
TECHNOLOGY AND CONSTRUCTION COURT (KBD)

Claim No. HT-2025-000219

BRAMPTON LEISURE LIMITED Claimant
- and -
HARTWELL CONSTRUCTION LTD Defendant

DEFENCE

References in this Defence to paragraph numbers are, unless otherwise stated, references to the paragraphs of the Particulars of Claim. Save as expressly admitted, the Defendant denies each and every allegation as if the same were set out and traversed seriatim.

The parties and the Contract

1. Paragraphs 1 to 5 are admitted, save that it is averred that the Defendant's design obligations were limited to those elements of the Works in respect of which the Defendant assumed design responsibility under the Contractor's Designed Portion, and did not extend to elements designed by or on behalf of the Claimant or its retained consultants.
2. It is averred that the pool water-treatment performance criteria pleaded at paragraph 5(c) were the subject of an Employer's Requirement which was incomplete and/or inconsistent, and that the Defendant is not liable for any deficiency arising from the Claimant's own design information.

Practical Completion

3. Paragraph 6 is admitted. It is averred that the Claimant's agent certified Practical Completion without qualification, and that no relevant defect was notified during the Rectification Period in accordance with clause 2.35 of the Contract.

The alleged defects

4. Paragraph 7 is denied. The Defendant's detailed response to each item is set out in the Defendant's column of the Scott Schedule. In summary:
   (a) as to water ingress, the abutment detail was constructed in accordance with the design issued by the Claimant's façade consultant; any ingress is attributable to a lack of maintenance of the rainwater goods by the Claimant;
   (b) as to the pool water-treatment plant, the plant was sized and commissioned in accordance with the Employer's Requirements; breaches of water-quality parameters were caused by the Claimant's operational mismanagement and over-occupancy of the pool;
   (c) as to ventilation, the air-handling installation met the design humidity criteria; condensation was caused by the Claimant operating the pool hall at elevated water and air temperatures outside the design basis; and
   (d) as to the studio HVAC, no defect is admitted; any malfunction was a commissioning matter remediable under the Rectification Period had it been notified.
5. The Defendant does not admit the report of Lyle Forsyth Associates and reserves the right to respond following exchange of expert evidence.

Loss and damage

6. Paragraphs 9 and 10 are denied. No admission is made as to the quantum of any head of loss, all of which is put in issue. In particular, the claim for loss of profit is excessive, fails to give credit for the Claimant's failure to mitigate, and is in any event irrecoverable as too remote.
7. Further or alternatively, the Defendant relies upon the contractual limitation and exclusion provisions at clause 2.17.3 and the bespoke amendment at Schedule 7 of the Contract, which (it is averred) cap the Defendant's aggregate liability.
8. Save as expressly admitted, the Defendant denies that the Claimant is entitled to the relief claimed or to any relief.

MICHAEL ARDEN KC
Pertwee Chambers

Statement of Truth
The Defendant believes that the facts stated in this Defence are true. I am duly authorised by the Defendant to sign this statement.
Signed: ..... Dated: 9 May 2025
Name: Stephen Maddox, Director, Hartwell Construction Ltd
Drummond Hale LLP, solicitors for the Defendant.